

Smt. Manisha Chawla vs Sh. Rahul Chawla (Husband) on 20 November, 2021

IN THE COURT OF SH. SANJEEV KUMAR MALHOTRA:
ADDITIONAL SESSIONS JUDGE-04: SHAHDARA:
KARKARDOOMA COURT: DELHI.

Crl. (A) No. 64/2019
New Crl. (A) No. 229/2019
CNR No. DLSH01-7558-2019

1. Smt. Manisha Chawla
W/o. Sh. Rahul Chawla
D/o. Sh. Anil Kumar
R/o. Quarter No. 177, Gopal Park,
Chander Nagar, Delhi-110051.
2. Master Manvik Chawla
Through his mother and natural
guardian (appellant No.1).

.....Appellants

Versus

1. Sh. Rahul Chawla (husband)
S/o. Sh. Rajesh Chawla
2. Sh. Rajesh Chawla
(Father in-law)
3. Smt. Sneha Chawla
W/o. Sh. Rajesh Chawla

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4. Sh. Gaurav Chawla
S/o. Sh. Rajesh Chawla
(Brother in-law)
5. Ms. Avneet Chawla
(Sister in-law/Jethani)
6. Ms. Richa Chawla
(sister in-law/Nanad)
All residents of
H.No.117, 2nd Floor,
Savita Vihar, Delhi-110092.

.....Respondents

ORDER

1. This appeal is preferred by the appellant u/s. 29 of the Protection of Women From Domestic Violence Act, 2005 (hereinafter referred to as D.V.Act) against interim order dt. 14.10.2019 passed by Ms. Deepti Devesh, Ld. MM (Mahila Court□No.1), Shahdara, KKD Courts, Delhi, whereby respondent no.1 was directed to pay a sum of Rs. 2,000/□per month to the complainant/appellant no.1 towards arrangement of alternative accommodation from the date on which complainant files any rent agreement showing her expenses for such arrangement or any other document showing her living expenses in court. An application u/s. 5 of Limitation Act for condonation of delay of 7 days is a l s o f i l e d a l o n g w i t h

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the appeal.

2. Arguments have been advanced by Mr. Mohd. Ali, Ld. Counsel for appellants as also by Sh. Trilok Chand, Ld. Counsel for respondents. I have also perused the trial court record as well as reply filed on behalf of respondents.

3. Ld. Counsel for appellants argued that appellant/wife tried her best to find a suitable accommodation i.e one bedroom flat in any decent area on a monthly rent of Rs.2,000/ but could not succeed. It has been further argued that appellant/wife enjoyed her shared household alongwith respondents at H.No.117, Savita Vihar, Delhi, and as such, she is entitled for same level of accommodation. Ld. Counsel for appellants further argued that a true copy of rental rent list in the locality of Savita Vihar as downloaded from different property web portal is annexed with the petition. It is thus, submitted that respondents be directed to pay Rs.15,000/□pm to the appellants towards rent for arranging suitable alternative accommodation.

4. On the other hand, Ld. Counsel for respondents argued that respondent no.1 has already challenged the interim maintenance of Rs.13,000/□awarded in favour of appellant and her minor c h i l d b y L d .

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Family Judge, U/s. 125 Cr.P.C in Crl. M.C No. 1561/2021, before Hon'ble High Court and after hearing the parties, Hon'ble High Court has directed respondent no.1 to pay Rs.7,000/□p.m as maintenance instead of Rs.13,000/□p.m and the said petition is still pending. Ld. Counsel for respondents further argued that respondent no.1 has already lost his job and as per affidavit of income filed before Ld. Trial Court his monthly income was only Rs. 8,500/□

5. The impugned order has been assailed mainly on the grounds that the monthly rental amount of Rs.2,000/□as awarded by Ld. Magistrate is grossly insufficient to arrange suitable alternative arrangement for the appellant No.1 and her child; that Ld. Magistrate erred in not considering the prevailing rent of a decent one BHK Flat in Delhi; that Ld. MM failed to appreciate the mandate of

legislature regarding the alternate accommodation to be provided to the complainant/appellants which is clearly reflected in Section 19(1)(f) of the Act; that Ld. Trial Court failed to appreciate that complainant/appellant is entitled to same level of alternate accommodation as enjoyed by her in shared household alongwith her husband and in laws; that Ld. Trial Court failed to appreciate that complainant is a single lady with an infant child and is presently taking shelter in her parental house and that Ld. M M ought to have awarded a

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reasonable amount to meet the rental expenses for arrangement of alternate accommodation by the complainant.

6. In brief, the relevant facts for disposal of the present appeal are that appellant No.1 was married with respondent No.1 on 04.04.2017 as per Hindu Rites and customs and on 05.01.2018 one male child was born out of the wedlock. It is alleged by the appellant no.1/complainant that her parents spent Rs.30 lakhs in the marriage but respondents harassed her on account of dowry demand and thus, she was beaten on several occasions. It is further the case of appellant/complainant that on 22.06.2017, respondents thrown out the appellant from her matrimonial home in wearing clothes after abusing and beating. After one week, when she went to her matrimonial home, the respondents did not open the door, hence, the application u/s. 12 of the D.V.Act was filed.

7. I have considered the submissions made in application u/s. 5 of Limitation Act for condonation of delay of 7 days in filing the appeal and in view of reasons mentioned therein, the delay of 7 days in filing the appeal is condoned.

8. Perusal of impugned order shows that Ld. Trial Court after considering the income affidavits of parties as well as the fact that interim

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maintenance of Rs.13,000/□p.m has been fixed u/s. 125 Cr.P.C by Ld. Family Judge, as an interim measure directed the respondent no.1 to pay a sum of Rs.2,000/□per month towards arrangement of alternative accommodation from the date complainant/appellant files any rent agreement. The plea of Ld. Counsel for appellant is that appellant is unable to find out a suitable accommodation i.e one bedroom flat in any decent area of same level as of her shared household on a monthly rent of Rs.2,000/□ No specific detail regarding any such property is filed on record except a rental rate list regarding the properties available in the locality of Savita Vihar, which is downloaded from web portal. As far as same level of alternate accommodation is concerned, it does not mean to have an accommodation in the same colony, where the shared household is situated. During the pendency of present petition respondent no.1 has filed an application for furnishing his fresh address, thereby submitting that he has taken a property on rent i.e. 488/5□A, near R□Block, Dilshad Garden, on monthly rent of Rs.3,200/□ Admittedly, the interim maintenance of Rs.13,000/□as awarded by Ld. Family Judge is subject to the outcome of CrI. M.C No. 1561/2021 and as an interim measure Hon'ble High Court has directed the respondent no.1 to pay Rs.7,000/□p.m as maintenance to his

wife and child. As per affidavit of income filed by respondent no.1 before Ld.Trial Court, his monthly income is Rs.8,500/□ The claim of the parties regarding their income and

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expenditure qua relief prayed in the application are yet to be determined after leading evidence by the parties.

9. After considering the submissions of the rival parties, I am of the opinion that the impugned order passed by Ld. Trial Court does not call for any interference. The appeal is dismissed being devoid of any merit. Trial Court record be sent back alongwith a copy of this order. Appeal file be consigned to record room. SANJEEV KUMAR MALHOTRA Announced in the open court MALHOTRA Location: Shahdara District, Karkardooma Courts through video conferencing Date: 2021.11.20 15:10:37 +0530 on 20.11.2021 (Sanjeev Kumar Malhotra) ASJ/Shahdara/KKD Delhi.

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